

25CMCV01691 25CMCV01691

County: los-angeles
Division: Civil Law and Motion
Department: A
Hearing date: 2026-08-14
Motion: DEFENDANT'S MOTION TO DISMISS
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Case Number: 25CMCV01691 Hearing Date: August 14, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

VANESSA VARGAS,

Plaintiff,

vs.

ALFREDO
VARGAS RAMIREZ,

Defendant.

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CASE NO: 25CMCV01691

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO DISMISS

Dept.

A

DATE:

August 14, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 10/07/2025

1st

AMENDED COMPLAINT FILED: 01/29/2026

2nd

AMENDED COMPLAINT FILED: 07/27/2026

TRIAL:

06/20/2028

MOVING

PARTY: Defendant Alfredo

Vargas Ramirez

RESPONDING

PARTY: None

1.

Background

This is an action for partition. Plaintiff Vanessa Vargas ("Plaintiff") alleges that she has power of attorney, including authority to file suit, for Tomas Vargas, the real party in interest for this action. Plaintiff alleges that Tomas Vargas and defendant Alfredo Vargas Ramirez ("Defendant") are joint tenants as owners of the property located at 11814 and 11814 1/2 Pope Ave., Lynwood, CA 90262 (the "Property"). Plaintiff seeks partition by sale of the Property.

2.

Discussion

Defendant moves

to dismiss Plaintiff's claims for failure to amend the complaint. Defendant contends that the court, on May 20, 2026, sustained Defendant's demurrer with leave to amend and that Plaintiff failed to timely file an amended complaint. Plaintiff does not oppose this motion.

Under Code of Civil

Procedure § 581, subd. (f)(1), a court may dismiss a complaint as to a defendant after a demurrer is sustained to that complaint without leave to amend and either party moves for dismissal. Dismissal is within the court's discretion, not mandatory. (Harlan v. Department of Transportation (2005) 132 Cal.App.4th 868, 874.)

On May 20, 2026, the

court sustained Defendant's demurrer to the First Amended Complaint ("FAC") with leave to amend. Notice of ruling was filed on May 21, 2026. Although the court did not set forth the date by which amendment was required, if no such order is expressly made, California Rules of Court, rule 3.1320 sets forth a 10-day deadline to file an amended pleading. (Cal. Rules of Court, Rule 3.1320, subd. (g)). Plaintiff filed a Second Amended Complaint ("SAC") on July 27, 2026, substantially after the 10-day deadline, and after this motion was filed putting Plaintiff on notice that no amended pleading had been filed.

Although Plaintiff's SAC was untimely, the court exercises its discretion to decline to dismiss the action. The demurrer to the FAC was sustained on procedural grounds, not substantive ones, and Plaintiff has since filed an SAC, albeit an untimely one. The court determines that dismissal of the action, under the circumstances, would not be in the interests of justice.

Defendant contends that dismissal is mandatory; however, under the express text of Code of Civil Procedure § 581 and accompanying case law, Defendant is incorrect, and dismissal is discretionary.

3.

Conclusion

Based on the foregoing, the court DENIES Defendant's motion to dismiss.

The clerk is directed to give notice.

IT IS SO ORDERED.

DATED: August 14, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court